Act of August 1, 1946 (60 Stat. 755), all uranium, thorium, or any other materials which are or may be determined to be peculiarly essential to the production of fissionable materials, whether or not of commercial value, together with the right of the United States through its authorized agents or representatives at any time to enter upon the lands and prospect for, mine, and remove the same; (2) the right to permit for joint or several use such easements or rights of way upon, through, or in the lands embraced herein as may be necessary or appropriate to the working of the same, or of other lands containing the deposits described in the act of February 25, 1920, *supra*, and the treatment and shipment of the products thereof by or under authority of the Government, its lessees, or permittees, and for other public purposes; (3) the right to lease, sell, or otherwise dispose of the surface of said lands under existing law or laws hereafter enacted in so far as said surface is not necessary for the use of the permittee in prospecting hereunder, and (4) the right and authority to cancel this instrument for failure of the permittee to comply with any of the conditions hereof, after 30 days' notice of the reasons for such cancellation.

The granting of this permit will not preclude the issuance of other permits or leases of the same lands for the mining of other minerals with suitable stipulations as to joint operation, in order that the full development of the mineral resources may be obtained.

Valid existing rights acquired prior hereto on the lands described herein will not be adversely affected hereby.

An application for extension of this permit should be filed only within the period beginning 90 days prior to the date to which the permit is limited and ending 30 days after that date. An application for a preference right lease should be filed promptly after discovery of coal within the permit area in commercial quantities, but in no event later than 30 days after the period for which the permit is limited; a showing as to such discovery, however, must be made prior to the expiration of the period to which the permit is limited.

Dated:_____

_____

Director, Bureau of Land Management.

§ 193.23 *Reward for discovery.* A permittee who shows that the land included in his permit contains coal in commercial quantities, is entitled to a lease for all or part of the permit lands, the area to be taken in compact form, upon due application and publication of notice thereof. Such showing shall be made within the period of his permit; and the application for lease should be filed in the district land office having jurisdiction over the lands involved promptly after discovery, but in no event later than 30 days after the period for which the permit is limited. If the lands are in a State in which there is no district land office, the application should be filed in the Bureau of Land Management. It should describe the lands desired and set forth fully and in detail the extent and mode of occurrence of the coal deposits as disclosed by the prospecting work performed under the permit. Such leases will be granted without competitive bidding, at such rental and royalty rates as may be fixed by the Secretary of the Interior.

§ 193.25 *Extension of permits.* By the act approved March 9, 1925 (45 Stat. 251, 30 U. S. C. 201a, 201b), the Secretary of the Interior may extend any coal prospecting permit issued under section 2 of the act of February 25, 1920 (41 Stat. 438, 30 U. S. C. 201) for a period of 2 years.

A permit may be extended if the permittee has been unable with the exercise of reasonable diligence to determine the existence or workability of the coal deposits, or for other reasons which may warrant an extension. An application for extension may be filed only within the period beginning 90 days prior to the date to which the permit is limited and ending 30 days after that date. The application should be filed in the district land office having jurisdiction over the lands involved. If the lands are in a State in which there is no district land office, the application should be filed in the Bureau of Land Management. It should show what efforts, if any, the permittee has made to comply with the terms of his permit and the reasons for failure fully to comply therewith, such showing to be corroborated, if possible, by an affidavit of at least one disinterested person having actual knowledge of the facts. The application should also show how much additional time is considered necessary to complete prospecting work. Extension will be limited to such period, not exceeding the 2 years authorized, as may be determined to be allowable under the circumstances in each particular case. Upon failure to file application within the specified period, the permit will be canceled.

As the permit bond is limited to the period for which the permit was granted, the permittee must file with an application for extension a properly executed assent by the surety or sureties on the bond to the extension of the bond to cover the life of the permit, if extended, or file a new bond.

Until the cancellation or termination of a coal permit is noted on the records of the district land office or on the records of the Bureau of Land Management if the lands involved are in a State in which there is no district land office, no other person will be permitted to gain any right to the same class of deposits by the filing of an application therefor.

2. Section 193.26 *Expiration of coal prospecting permits* is revoked.

(Sec. 32, 41 Stat. 450; 30 U. S. C. 189)

FRED W. JOHNSON,
Acting Director.

APPROVED: JANUARY 14, 1947.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

[F. R. Doc. 47-542; Filed, Jan. 20, 1947; 8:46 a. m.]

Appendix—Public Land Orders

[Public Land Order 340]

NEW MEXICO

REVOKING IN PART PUBLIC LAND ORDER 186 OF OCTOBER 11, 1943, WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT AS AN AUXILIARY LANDING FIELD AND AS PRACTICE BOMBING RANGES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 186 of October 11, 1943, withdrawing public lands for the use of the War Department as an auxiliary landing field and as practice bombing ranges, is hereby revoked so far as it affects the hereinafter-described public lands.

The jurisdiction over and use of such lands granted to the War Department by Public Land Order No. 186 shall cease upon the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on March 17, 1947.

At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from March 17, 1947 to June 16, 1947, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from February 25, 1947 to March 17, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on March 17, 1947 shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on June 17, 1947 any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from May 28, 1947 to June 17, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on June 17, 1947 shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval

service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Las Cruces, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Las Cruces, New Mexico.

The lands affected by this order are described as follows:

NEW MEXICO PRINCIPAL MERIDIAN

T. 20 S., R. 24 E., sec. 4.
T. 24 S., R. 27 E., sec. 24, NE¼.
T. 20 S., R. 29 E., sec. 21.
T. 25 S., R. 30 E., sec. 18.

The areas described aggregate 2,081.82 acres.

These public lands are located in the central and southerly part of Eddy County, New Mexico, in a typical desert area, level to rolling in topography, at an elevation of approximately 3,000 feet.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

JANUARY 13, 1947.

[F. R. Doc. 47-538; Filed, Jan. 20, 1947; 8:47 a. m.]

[Public Land Order 341]

MONTANA

REVOKING PUBLIC LAND ORDER 90 OF FEBRUARY 10, 1943, WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT FOR AVIATION PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 90 of February 10, 1943, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing public lands for the use of the War Department for aviation purposes, which was revoked in part by Public Land Order No. 214 of March 13, 1944, is hereby revoked as to the remaining lands described hereinafter.

The jurisdiction over and use of such lands granted to the War Department by Public Land Order No. 90 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other department or agency of the Federal Government, according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on March 17, 1947.

At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from March 17, 1947 to June 17, 1947 inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from February 25, 1947 to March 17, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on March 17, 1947 shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on June 17, 1947 any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from May 28, 1947 to June 17, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on June 17, 1947 shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Great Falls, Montana, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Great Falls, Montana.

The lands affected by this order are described as follows:

PRINCIPAL MERIDIAN

T. 25 N., R. 38 E.,
Sec. 1, S½;
Sec. 2, S½;
Secs. 11 and 12;
Sec. 13, N½;
Sec. 14, N½.

The area described aggregates 2,560 acres.

The lands are in Montana Grazing District No. 1, and are located in Valley County, Montana, near Willow Creek, within one mile of the county road to Fort Peck, about 17 miles to the east. Available information indicates that they are nontillable grazing lands.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

JANUARY 13, 1947.

[F. R. Doc. 47-539; Filed, Jan. 20, 1947; 8:47 a. m.]

[Public Land Order 342]

CALIFORNIA

REVOKING PUBLIC LAND ORDER 1 OF JUNE 20, 1942, WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT FOR CAMP SITES AND MANEUVER PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 1 of June 20, 1942, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing the public lands in the areas hereinafter described, for the use of the War Department for camp sites and maneuver purposes, is hereby revoked.

The jurisdiction over and use of such lands granted to the War Department by Public Land Order No. 1 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on March 17, 1947.

At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from March 17, 1947, to June 16, 1947, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June